IN THE HIGH COURT OF JUDICATURE AT BOMBAY
CRIMINAL APPELLATE JURISDICTION

CRIMINAL WRIT PETITION NO. 2386 OF 2026

Mani Venkatesan Udaiyar ..Petitioner
Versus
The State of Maharashtra & Ors. ..Respondents

Ms. Afaf Shaikh i/b. Sirat N. Khan for Petitioner.
Ms. Gauri S. Rao, APP for State/Respondent.

CORAM : SARANG V. KOTWAL &
ASHISH S. CHAVAN, JJ.

DATE : 16 JUNE 2026

PC :

1. Heard Ms. Afaf Shaikh, learned counsel for the Petitioner and Ms. Gauri Rao, learned APP for the State.

2. The petition is filed by the son of the detenue. The contention of the Petitioner is that, his father Venkatesan was illegally arrested by the Respondent No.3 i.e. the Police Inspector, Economic Offence Wing, Unit-9, Mumbai and that his father is in continuous illegal detention in violation of constitutional safeguards and in violation of statutory provisions. The arrest was

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in respect of C.R.No.20 of 2025 registered with Housing 1, Economic Offence Wing for commission of the offences punishable under sections 406, 409, 420, 506(2), 201 and 120(B) of the IPC and U/s.3 and 4 of the Maharashtra Protection of Interest of Depositors (In Financial Establishments) Act, 1999.

3. It is the case of the Petitioner that on 02.04.2026 at about 7:06a.m. the officers of the Economic Offence Wing (for short 'EOW') came to the residence of the detenue and took him in their custody. From that point onwards, he was always under the control of the officers and, therefore, the arrest was effective from that point onwards. In spite of that, the officers have shown him arrested at 11:30a.m. The main contention of the Petitioner is that the detenue was not provided with the written grounds of arrest and was not informed properly the reasons of his arrest at the time of his detention. It is further contended that the police misled the family by stating that the detenue was taken for routine inquiry and would return shortly. The detenue was coerced into signing certain documents.

4. On 02.04.2026, the detenue was produced before the Sessions Court, Mumbai in Remand Application No.463 of 2026. It is the case of the Petitioner that the detenue specifically submitted before the Court that he was not furnished with the grounds of arrest in writing. The Respondent Police falsely contended that the detenue had refused to accept the same. The said Court granted police custody till 06.04.2026. Again on that date i.e. on 06.04.2026 the detenue was produced before the Court and then he was granted judicial custody till 18.04.2026. It is the contention of the Petitioner that the detenue's arrest was *void ab initio.* It violated Articles 21 and 22 of the Constitution. It violated the law laid down by the Hon'ble Supreme Court. It is the contention of the learned counsel for the Petitioner that, subsequent remand to judicial custody does not cure the illegality of the initial arrest. In support of the petition, learned counsel for the Petitioner submitted that the learned Sessions Judge failed to examine the procedural violation. The remand order was passed mechanically without proper application of mind. There was independent evidence in the form of CCTV footage supporting the detenue's

case. Once the detenue alleged that the arrest was illegal, the burden shifted on the Respondent to justify the legality of arrest. Learned counsel for the Petitioner relied on the following two judgments of the Hon'ble Supreme Court:

i) ***D.K.Basu Vs. State of West Bengal, Decided on 18.12.1996, passed in Writ Petition (Criminal) No.539 of 1986***.

In particular, she relied on six main guidelines as follows:

> "(1) The police personnel carrying out the arrest and handling the interrogation of the arrestee should bear accurate, visible and clear identification and name tags with their designations. The particulars of all such police personnel who handle interrogation of the arrestee must be recorded in a register.
>
> (2) That the police officer carrying out the arrest of the arrestee shall prepare a memo of arrest at the time of arrest and such memo shall be attested by at least one witness, who may be either a member of the family of the arrestee or a respectable person of the locality from where the arrest is made. It shall also be counter signed by the arrestee and shall contain the time and date of arrest.
>
> (3) A person who has been arrested or detained and is being held in custody in a police station or interrogation center or other lock-up, shall be entitled to have one friend or relative or other person known to him or having interest in his welfare being informed, as soon as practicable, that he has been arrested and is being detained at the particular place, unless the attesting witness of the memo of arrest is himself such a friend or a relative of the arrestee.
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> (4) The time, place of arrest and venue of custody of an arrestee must be notified by the police where the next friend or relative of the arrestee lives outside the district or

> town through the Legal Aid Organisation in the District and the police station of the area concerned telegraphically within a period of 8 to 12 hours after the arrest.
>
> (5) The person arrested must be made aware of this right to have someone informed of his arrest or detention as soon as he is put under arrest or is detained.
>
> (6) An entry must be made in the diary at the place of detention regarding the arrest of the person which shall also disclose the name of the next friend of the person who has been informed of the arrest and the names and particulars of the police officials in whose custody the arrestee is."

ii) ***Pankaj Bansal Vs. Union of India (UOI) and Ors. Decided on 03.10.2023 in Criminal Appeal Nos.3051-3052 of 2023.***

In the said Judgment, according to the learned counsel, it was held that the grounds of arrest must be furnished to the arrested person and that the authorised officer has to record in writing the reasons for arrest forming the belief that the person proposed to be arrested is guilty of an offence.

5. On the other hand, learned APP relied on the Affidavit in reply filed by Prakash Laxman Linge, Police Inspector attached to EOW, Mumbai. She submitted that, all the procedural safeguards are properly followed by the investigating agency while arresting the detenue. The relevant entries are made in the station diary.

The signature of the detenue is also taken on the grounds of arrest. The family of the detenue refused to accept the grounds of arrest. Though, the F.I.R. was lodged against one Ashish Shah, the investigation was conducted and it was revealed that even the Petitioner had duped other persons. She submitted that, the offence is serious. His arrest is justified. His arrest was necessary for the investigation purposes. She submitted that the detenue has not preferred any bail application and has filed this petition without any basis.

6. We have considered these submissions. The allegations against the detenue are reflected in the Affidavit in reply. The complaint was lodged by one Jaypal Kaunder against one Ashish Shah. The allegations were that the depositors were induced by Ashish Shah in parting with their hard earned money. He had represented that he was in the business of share market trading. Ashish Shah had promissed return of 84%p.a. to the informant. He obtained huge amount from the informant and his wife which was around more than 11 crores. The said amount was misappropriated by Ashish Shah. Therefore, the informant lodged

his F.I.R. The FIR was lodged at Versova police station, Mumbai. It was transferred to DCB CID, Mumbai and then it was transferred to EOW. It was investigated as EOW C.R.No.20 of 2025.

7. During the investigation, complicity of several other persons was revealed. The detenue was shown as Accused No.15. The charge-sheet against other 14 accused was already filed and it resulted in Special Case No.2042 of 2024 before the Special Court (MPID), Mumbai.

8. The Affidavit further mentions that the Detenue Venkatesan has one antecedent against him i.e. C.R.No.17 of 2025 registered at Tiruvannamalai DCB, in Tamil Nadu, under sections 420, 406, 294(b) of the IPC r/w. Section 76(1) of the Chit Funds Act, 1982. The Affidavit further mentions that the investigation has revealed that the Detenue was directly involved in inducing six investors to invest sum of Rs.1,44,77,986/- by promising them high returns. All these funds were misappropriated. The bank transactions show massive financial transactions running into crores of rupees between the personal/ firm bank account of the

Detenue, his wife and the main accused Ashish Shah. The Detenue had falsely represented that there were outstanding dues of Rs.1,08,15,000/- from Ashish Shah to him and that he was a victim. However, the Detenue has failed to show lawful source of that money. The bank record shows transactions totalling Rs.12,45,19,637/- to the personal and Firm's accounts of the Detenue and his wife during this period; for which no lawful explanation was provided.

9. Thus, it can be seen that the allegations against the Detenue are quite serious and there were justifiable reasons for arresting the Detenue. As far as the procedural aspect is concerned, the Affidavit further mentions that on 02.04.2026 at about 7:15a.m. the Detenue was asked to come for investigation, but he gave evasive replies at the EOW office. Thus, the officers were satisfied about his direct involvement in the crime. The Affidavit further mentions that the Detenue was fully informed about the reasons for his arrest. The written grounds of arrest were explicitly tendered to him and then he was taken into custody at 11:30a.m. Exhibit-A to the Affidavit is a copy of the grounds of

arrest U/s.47(1)(2) of the Bharatiya Nagarik Suraksha Sanhita, 2023 (for short 'BNSS, 2023'). The Affidavit further goes on to mention that the Detenue's family was duly informed about his arrest. The Detenue's wife and the Petitioner i.e. the Detenue's son were notified in strict compliance of the statutory mandates. Exhibit-B to the Affidavit in reply was a copy of the intimation form U/s.48(1) and (2) of the BNSS, 2023. It is specifically mentioned in the Affidavit in reply that at the time of service, the relatives refused to sign the service acknowledgment of the notice. The said fact was mentioned in the station diary, as well as, in the crime report. The formal entry of arrest was recorded in the arrest memo, as well as, in the station diary of the EOW. The Detenue was produced on the same day before the Special Court (MPID), Mumbai on 02.04.2026 at 4:00p.m. within the stipulated 24 hours. It was clearly stated in the remand report dated 02.04.2026. After that the orders were passed by the said Court.

10. The observations of the Hon'ble Supreme Court in ***D. K. Basu's*** case enjoin certain duties on the investigating agency to follow certain procedure. The police officers were required to

prepare the memo of arrest at the time of arrest. That memo was required to be attested by at least one witness. In the present case, a copy of the memo of arrest is annexed to the Affidavit in reply. It is signed by the Detenue, and there are signatures of two witnesses Nishant Bhau Gadge and Chandrakala Shailendra Salve. Therefore, there is sufficient compliance of that particular requirement.

11. As far as necessity to inform the relatives and friends, as required U/s.48(1) of the BNSS, 2023 is concerned, a copy of the said notice is annexed at Exhibit-B to the Affidavit in reply. It mentions the grounds of arrest and the reasons necessary for arrest. The said notice is signed by the Police Inspector, Unit-1, Housing-1, EOW, Mumbai, and there is an endorsement as follows:

> "Refused to take notice copy SDE : 38/2026 time 14.35 hrs."

A copy of the station diary entry at 14:35hrs. on 02.04.2026 is annexed at Exhibit-C to the Affidavit in reply. The said fact is specifically reflected in the said entry that the notice was served to the Petitioner who is son of the Detenue. Thus, there

is sufficient compliance of Section 48(1) of the BNSS, 2023.

12. As far as the communication of grounds of arrest in writting is concerned, Exhibit-A to the Affidavit in reply is a copy of such notice. The notice is addressed to the Detenue. The notice specifically mentions the grounds for arrest which sufficiently described as to why he was being arrested. The notice also mentions the reasons as to why the arrest was necessary. The grounds of arrest and the reasons for arrest are separately and specifically mentioned. They gave sufficiently clear information to the detenue. Thus, we find there is sufficient compliance of the statutory requirements and constitutional safeguards. They are fully complied by the investigating agency.

13. The orders passed by the Special Court on 02.04.2026 and on 06.04.2026 are also important. The order dated 02.04.2026 shows that the learned Judge has considered these aspects. He had perused the copy of the notice communicating the grounds of arrest, bearing the signature of the Detenue. It also has a reference to the compliance of Section 48 of the BNSS, 2023

about intimating his arrest to his wife and son. The order has reference to the merits of the case. The remand order dated 02.04.2026 has reference to all these aspects and also records properly as to why further police custody was necessary. Even the order dated 06.04.2026 shows application of mind. In the order dated 06.04.2026 the contentions of the Detenue about non compliance of the aforementioned guidelines are also considered by the learned Judge. Both these orders display proper application of mind.

14. Considering all these aspects, we do not find any merit in the present petition. All the requirements of procedural law are complied with by the investigating agency. The learned Judge has passed correct orders in remanding the Detenue. Therefore, we do not find any flaw in compliance of the procedural requirement. We do not find any merit in the petition.

15. The petition is accordingly dismissed.

16. It is needless to add that the Detenue has an independent right to make appropriate bail application before the

competent Court. If such an application is preferred, it shall be decided expeditiously on merits and in accordance with law, without being influenced by dismissal of this petition.

17. With these observations, the petition is disposed of.

(ASHISH S. CHAVAN, J.) (SARANG V. KOTWAL, J.)